

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 614

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO THE DEVELOPMENTALLY DISABLED AND MENTALLY ILL; AMENDING SECTION 66-317, IDAHO CODE, TO REVISE DEFINITIONS; AMENDING SECTION 66-329, IDAHO CODE, TO REVISE A PROVISION REGARDING THE DETENTION OR INVOLUNTARY ADMISSION TO A HOSPITAL OR OTHER FACILITY OF CERTAIN INDIVIDUALS; AMENDING SECTION 66-402, IDAHO CODE, TO REVISE A DEFINITION; AMENDING SECTION 66-406, IDAHO CODE, TO PROVIDE FOR A REBUTTABLE PRESUMPTION THAT A PERSON IS UNABLE TO MEET ESSENTIAL REQUIREMENTS FOR PHYSICAL HEALTH OR SAFETY IN CERTAIN INSTANCES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 66-317, Idaho Code, be, and the same is hereby amended to read as follows:

66-317. DEFINITIONS. As used in this chapter:

(1) "Department director" means the director of the state department of health and welfare.

(2) "Voluntary patient" means an individual admitted to a facility for evaluation pursuant to section 18-211, Idaho Code, or admitted to a facility for observation, diagnosis, evaluation, care, or treatment pursuant to section 66-318, Idaho Code.

(3) "Involuntary patient" means an individual committed pursuant to section 18-212, 66-329, or 66-1201, Idaho Code.

(4) "Designated examiner" means an individual who meets the qualifications pursuant to section 66-323, Idaho Code.

(5) "Dispositioner" means a designated examiner employed by or under contract with the department of health and welfare and designated by the department director to determine the appropriate location for care and treatment of involuntary patients.

(6) "Facility" means any public or private hospital, state hospital, institution, mental health center, or other organization designated in accordance with rules adopted by the board of health and welfare as equipped to initially hold, evaluate, rehabilitate, or provide care or treatment, or both, for the mentally ill.

(7) "Lacks capacity to make informed decisions about treatment" means the inability, by reason of mental illness, to achieve a rudimentary understanding after conscientious efforts at explanation of the purpose, nature, and possible significant risks and benefits of treatment.

(8) "Inpatient treatment facility" means a facility in which an individual receives medical and mental treatment for not less than a continuous twenty-four (24) hour period.

(9) "Supervised residential facility" means a facility, other than the individual's home, in which the individual lives and in which there live, or

are otherwise on duty during the times that the individual's presence is expected, persons who are employed to supervise, direct, treat, or monitor the individual.

(10) "Likely to injure himself or others" means:

(a) A substantial risk that physical harm will be inflicted by the proposed patient upon his own person, as evidenced by threats or attempts to commit suicide or inflict physical harm on himself; or

(b) A substantial risk that physical harm will be inflicted by the proposed patient upon another as evidenced by behavior that has caused such harm or that places another person or persons in reasonable fear of sustaining such harm; or

(c) The proposed patient lacks insight into his need for treatment and is unable or unwilling to comply with treatment and, based on his psychiatric history, clinical observation or other clinical evidence, if he does not receive and comply with treatment, there is a substantial risk he will continue to physically, emotionally or mentally deteriorate to the point that he will, in the reasonably near future, inflict physical harm on himself or another person.

(11) "Mentally ill" means a condition resulting in a substantial disorder of thought, mood, perception, or orientation that grossly impairs judgment, behavior, or capacity to recognize and adapt to reality and requires care and treatment at a facility or through outpatient treatment. ~~However, the term "mentally ill" does not include conditions discussed in section 66-329(13)(a), Idaho Code.~~

(12) (a) "Gravely disabled" means the condition of a person who, as the result of mental illness, has demonstrated an inability to:

~~(a) (i) Attend to basic physical needs, such as medical care, food, clothing, shelter, or safety;~~

~~(b) (ii) Protect himself from harm or victimization by others;~~

~~(c) (iii) Exercise sufficient behavioral control to avoid serious criminal justice involvement, such as repeated law enforcement contact; or~~

~~(d) (iv) Recognize that he is experiencing symptoms of a serious mental illness and lacks the insight into his need for treatment, whereby the subsequent absence of treatment may result in deterioration of his condition such that any of the circumstances listed in this subsection may be satisfied in the near future.~~

(b) A judicial finding in any currently pending criminal proceeding that a defendant is unfit and there is not a substantial probability the defendant will be fit to proceed within the foreseeable future or if the defendant is not fit to proceed after the expiration of the additional one hundred eighty (180) days, pursuant to section 18-212, Idaho Code, shall create a rebuttable presumption that the person is gravely disabled for purposes of section 66-329, Idaho Code.

(13) "Neurocognitive disorder" means decreased mental function due to a medical disease other than a psychiatric illness, including:

(a) Alzheimer's disease;

(b) Frontotemporal lobar degeneration;

(c) Lewy body dementia;

(d) Vascular dementia;

- (e) Traumatic brain injury;
- (f) Inappropriate use or abuse of substances or medications;
- (g) Infection with human immunodeficiency virus;
- (h) Prion diseases;
- (i) Parkinson's disease; or
- (j) Huntington's disease.

(14) "Outpatient treatment" means mental health treatment, not involving the continuous supervision of a person in an inpatient setting, that is reasonably designed to alleviate or to reduce a person's mental illness or to maintain or prevent deterioration of the person's physical, mental, or emotional functioning. Mental health services or treatment may include, but need not be limited to, taking prescribed medication, reporting to a facility to permit monitoring of the person's condition, or participating in individual or group therapy.

(15) "Protection and advocacy system" means the agency designated by the governor as the state protection and advocacy system pursuant to 42 U.S.C. 15043 and 42 U.S.C. 10801 et seq.

(16) "Holding proceedings in abeyance" means an alternative to judicial commitment based on an agreement entered into by all parties, including the proposed patient, and agreed to by the court, providing for voluntary conditions of treatment, which hold in a state of suspension or inactivity the petition for involuntary commitment.

(17) "Senior designated examiner" means an individual who has three (3) years of experience as a designated examiner and five (5) years of post-master's degree experience in a mental health field and who has been approved by the department director or the department director's designee to act as a senior designated examiner.

SECTION 2. That Section 66-329, Idaho Code, be, and the same is hereby amended to read as follows:

66-329. COMMITMENT TO DEPARTMENT DIRECTOR UPON COURT ORDER -- JUDICIAL PROCEDURE. (1) Proceedings for the involuntary care and treatment of mentally ill persons by the department of health and welfare may be commenced by the filing of a written application with a court of competent jurisdiction by a friend, relative, spouse or guardian of the proposed patient, by a licensed physician, by a physician assistant or advanced practice registered nurse practicing in a hospital, by a prosecuting attorney or other public official of a municipality, county or of the state of Idaho, or by the director of any facility in which such patient may be.

(2) The application shall state the name and last known address of the proposed patient; the name and address of the spouse, guardian, next of kin, or friend of the proposed patient; whether the proposed patient can be cared for privately in the event commitment is not ordered; whether the proposed patient is, at the time of the application, a voluntary patient; whether the proposed patient has applied for release pursuant to section 66-320, Idaho Code; and a simple and precise statement of the facts showing that the proposed patient is mentally ill and either likely to injure himself or others or is gravely disabled due to mental illness.

(3) Any such application shall be accompanied by a certificate of a designated examiner stating that he has personally examined the proposed pa-

1 tient within the last fourteen (14) days and is of the opinion that the pro-
2 posed patient is: (i) mentally ill; (ii) likely to injure himself or oth-
3 ers or is gravely disabled due to mental illness; and (iii) lacks capacity to
4 make informed decisions about treatment;
5 or a written statement by the applicant that the proposed patient has refused
6 to submit to examination by a designated examiner.

7 (4) Upon receipt of an application for commitment, the court shall,
8 within forty-eight (48) hours, appoint another designated examiner to make
9 a personal examination of the proposed patient, or if the proposed patient
10 has not been examined, the court shall appoint two (2) designated examiners
11 to make individual personal examinations of the proposed patient and may
12 order the proposed patient to submit to an immediate examination. If neither
13 designated examiner is a physician, the court shall order a physical exami-
14 nation of the proposed patient. At least one (1) designated examiner shall
15 be a senior designated examiner. The designated examiners shall report to
16 the court their findings within the following seventy-two (72) hours as to
17 the mental condition of the proposed patient and his need for custody, care,
18 or treatment by a facility. The reports shall be in the form of written cer-
19 tificates that shall be filed with the court. The court may terminate the
20 proceedings and dismiss the application without taking any further action in
21 the event the reports of the designated examiners are to the effect that the
22 proposed patient is not mentally ill or, although mentally ill, is not likely
23 to injure himself or others or is not gravely disabled due to mental illness.
24 If the proceedings are terminated, the proposed patient shall be released
25 immediately.

26 (5) If the designated examiner's certificate states a belief that the
27 proposed patient is mentally ill and either likely to injure himself or oth-
28 ers or is gravely disabled due to mental illness, the judge of such court
29 shall issue an order authorizing any health officer, peace officer, or di-
30 rector of a facility to take the proposed patient to a facility in the com-
31 munity in which the proposed patient is residing or to the nearest facility
32 to await the hearing, and for good cause may authorize treatment during such
33 period subject to the provisions of section 66-346(a) (4), Idaho Code. Under
34 no circumstances shall the proposed patient be detained in a nonmedical unit
35 used for the detention of individuals charged with or convicted of penal of-
36 fenses.

37 (6) Upon receipt of such application and designated examiners' re-
38 ports, the court shall appoint a time and place for a hearing not more than
39 seven (7) days from the receipt of such designated examiners' reports and
40 thereupon give written notice of such time and place of such hearing, to-
41 gether with a copy of the application, designated examiner's certificates,
42 and notice of the proposed patient's right to be represented by an attor-
43 ney or, if indigent, to be represented by a court-appointed attorney, to
44 the applicant, to the proposed patient, to the proposed patient's spouse,
45 guardian, next of kin, or friend. With the consent of the proposed patient
46 and his attorney, the hearing may be held immediately. Upon motion of the
47 petitioner, or upon motion of the proposed patient and attorney, and for good
48 cause shown, the court may continue the hearing up to an additional seven
49 (7) days during which time, for good cause shown, the court may authorize
50 treatment.

1 (7) An opportunity to be represented by counsel shall be afforded to ev-
2 ery proposed patient, and, if neither the proposed patient nor others pro-
3 vide counsel, the court shall appoint counsel in accordance with chapter 8,
4 title 19, Idaho Code, no later than the time the application is received by
5 the court.

6 (8) If the involuntary detention was commenced under this section, the
7 hearing shall be held in a manner and at a suitable place not likely to have
8 a harmful effect on the proposed patient's physical or mental health. Venue
9 for the hearing shall be in the county of residence of the proposed patient
10 or in the county where the proposed patient was found immediately prior to
11 commencement of such proceedings.

12 (9) In all proceedings under this section, any existing provision of
13 the law prohibiting the disclosure of confidential communications between
14 the designated examiner and proposed patient shall not apply and any desig-
15 nated examiner who shall have examined the proposed patient shall be a compe-
16 tent witness to testify as to the proposed patient's condition.

17 (10) The proposed patient, the applicant, and any other persons to whom
18 notice is required to be given shall be afforded an opportunity to appear at
19 the hearing, to testify, and to present and cross-examine witnesses. The
20 proposed patient may, after consulting with his attorney, waive his presence
21 at court. The court may waive the presence of a proposed patient if the men-
22 tal or physical state of the proposed patient is such that his presence at the
23 hearing would be detrimental to the proposed patient's health or would un-
24 duly disrupt the proceedings. A record of the proceedings shall be made as
25 for other civil hearings. The hearing shall be conducted in as informal a
26 manner as may be consistent with orderly procedure. The court shall receive
27 all relevant and material evidence consistent with the rules of evidence.

28 (11) If, upon completion of the hearing and consideration of the record,
29 and after consideration of reasonable alternatives including, but not lim-
30 ited to, holding the proceedings in abeyance for a period of up to thirty (30)
31 days, the court finds by clear and convincing evidence that the proposed pa-
32 tient:

33 (a) Is mentally ill; and

34 (b) Is, because of such condition, likely to injure himself or others,
35 or is gravely disabled due to mental illness;

36 the court shall order the proposed patient committed to the custody of the
37 department director for observation, care, and treatment for an indeter-
38 minate period of time not to exceed one (1) year. The department director,
39 through his dispositioner, shall determine within twenty-four (24) hours
40 the least restrictive available facility or outpatient treatment, con-
41 sistent with the needs of each patient committed under this section for
42 observation, care, and treatment.

43 (12) The commitment order constitutes a continuing authorization for
44 the department of health and welfare, law enforcement, or director of a fa-
45 cility, upon request of the director of the outpatient facility, the physi-
46 cian, or the department director through his dispositioner, to transport a
47 committed patient to designated outpatient treatment for the purpose of mak-
48 ing reasonable efforts to obtain the committed patient's compliance with the
49 terms and conditions of outpatient treatment. If the director of the outpa-

1 tient facility, the treating physician, or the department director through
 2 his dispositioner determines any of the following:

3 (a) The patient is failing to adhere to the terms and conditions of
 4 outpatient treatment or the patient refuses outpatient treatment after
 5 reasonable efforts at compliance have been made; or

6 (b) Outpatient treatment is not effective after reasonable efforts
 7 have been made;

8 the department director through his dispositioner shall cause the commit-
 9 ted patient to be transported by the department of health and welfare, law
 10 enforcement, or director of a facility to the least restrictive available
 11 facility for observation, care, and treatment on an inpatient basis. Within
 12 forty-eight (48) hours of a committed patient's transfer from outpatient
 13 treatment to a facility for inpatient treatment, the department director
 14 through his dispositioner shall notify the court that originally ordered the
 15 commitment, the committed patient's attorney, and the committed patient's
 16 spouse, guardian, adult next of kin, or friend of the change in disposi-
 17 tion and provide a detailed affidavit reciting the facts and circumstances
 18 supporting the transfer from outpatient treatment to inpatient treatment
 19 at a facility. The court shall conduct an ex parte review of the notice and
 20 affidavit within forty-eight (48) hours of filing and determine whether the
 21 change in disposition from outpatient treatment to inpatient treatment at a
 22 facility is supported by probable cause. In no event shall the calculation
 23 of forty-eight (48) hours provided for in this subsection include holidays
 24 formally recognized and observed by the state of Idaho, nor shall the cal-
 25 culation include weekends. If the court determines that probable cause
 26 exists, the department director through his dispositioner shall continue
 27 with care and treatment on an inpatient basis at the least restrictive avail-
 28 able facility. Within twenty-four (24) hours of a finding of probable cause,
 29 the court shall issue an order to show cause why the patient does not meet
 30 the conditions in paragraph (a) or (b) of this subsection. The order shall
 31 be served on the committed patient, the committed patient's attorney and the
 32 committed patient's spouse, guardian, adult next of kin, or friend. The pa-
 33 tient shall have fifteen (15) days to present evidence that the conditions in
 34 paragraph (a) or (b) of this subsection have not been met. In no event shall
 35 the calculation of twenty-four (24) hours provided for in this subsection
 36 include holidays formally recognized and observed by the state of Idaho,
 37 nor shall the calculation include weekends. If the court determines that
 38 a change in disposition from outpatient treatment to inpatient treatment
 39 does not meet the conditions in paragraph (a) or (b) of this subsection, the
 40 department director through his dispositioner will continue with outpatient
 41 treatment on the same or modified terms and conditions. Nothing provided
 42 in this section shall limit the authority of any law enforcement officer to
 43 detain a patient pursuant to the emergency authority conferred by section
 44 66-326, Idaho Code.

45 (13) Nothing in this chapter or in any rule adopted pursuant thereto
 46 shall be construed to authorize the detention or involuntary admission to a
 47 hospital or other facility of an individual who:

48 (a) ~~Has a neurological disorder, a neurocognitive disorder, a develop-~~
 49 ~~mental disability as defined in section 66-402, Idaho Code, or a physi-~~
 50 ~~cal disability, or any medical disorder that includes psychiatric symp-~~

1 ~~temology~~ or is primarily impaired by substance use, unless in addition
2 to such condition, such person is mentally ill;

3 (b) Is a patient under treatment by spiritual means alone, through
4 prayer, in accordance with the tenets and practices of a recognized
5 church or religious denomination by a duly accredited practitioner
6 thereof and who asserts to any authority attempting to detain him that
7 he is under such treatment and who gives the name of a practitioner so
8 treating him to such authority; or

9 (c) Can be cared for privately with the help of willing and able family
10 or friends in such a way as to no longer present substantial risk to him-
11 self or others, provided that such person may be detained or involuntar-
12 ily admitted if such person is mentally ill and presents a substantial
13 risk of injury to himself or others if such care is not adequate.

14 (14) The order of commitment shall state whether the proposed patient
15 lacks capacity to make informed decisions about treatment, the name and ad-
16 dress of the patient's attorney and the patient's spouse, guardian, adult
17 next of kin, or friend.

18 (15) If the patient has no spouse or guardian and if the patient has
19 property that may not be cared for pursuant to chapter 5, title 66, Idaho
20 Code, or by the patient while confined at a facility, the court shall appoint
21 a guardian ad litem for the purpose of preserving the patient's estate, pend-
22 ing further guardianship or conservatorship proceedings.

23 (16) The commitment shall continue until terminated and shall be unaf-
24 fected by the patient's conditional release or change in disposition.

25 SECTION 3. That Section 66-402, Idaho Code, be, and the same is hereby
26 amended to read as follows:

27 66-402. DEFINITIONS. As used in this chapter:

28 (1) "Adult" means an individual eighteen (18) years of age or older.

29 (2) "Artificial life-sustaining procedures" means any medical proce-
30 dure or intervention that utilizes mechanical means to sustain or supplant
31 a vital function. Artificial life-sustaining procedures shall not include
32 the administration of medication, and it shall not include the performance
33 of any medical procedure deemed necessary to alleviate pain, or any proce-
34 dure that could be expected to result in the recovery or long-term survival
35 of the patient and his restoration to consciousness.

36 (3) "Department" means the Idaho department of health and welfare.

37 (4) "Director" means the director of the department of health and wel-
38 fare.

39 (5) "Developmental disability" means a chronic disability of a person
40 that appears before the age of twenty-two (22) and:

41 (a) Is attributable to an impairment, such as intellectual disability,
42 cerebral palsy, epilepsy, autism or other condition found to be closely
43 related to or similar to one (1) of these impairments that requires sim-
44 ilar treatment or services, or is attributable to dyslexia resulting
45 from such impairments; and

46 (b) Results in substantial functional limitations in three (3) or more
47 of the following areas of major life activity: self-care, receptive and
48 expressive language, learning, mobility, self-direction, capacity for
49 independent living, or economic self-sufficiency; and

(c) Reflects the need for a combination and sequence of special, interdisciplinary or generic care, treatment or other services that are of lifelong or extended duration and individually planned and coordinated.

(6) "Emancipated minor" means an individual between fourteen (14) and eighteen (18) years of age who has been married or whose circumstances indicate that the parent-child relationship has been renounced.

(7) "Evaluation committee" means an interdisciplinary team of at least three (3) individuals designated by the director or his designee to evaluate an individual as required by the provisions of this chapter. Each committee must include a physician licensed to practice medicine in the state of Idaho, a licensed social worker or a licensed professional counselor, and a clinical psychologist or such other individual who has a master's degree in psychology as designated by the department director. In a proceeding governed by section 66-404, Idaho Code, a licensed independent practitioner may be used instead of a physician. Each committee member must be specially qualified by training and experience in the diagnosis and treatment of persons with a developmental disability.

(8) "Facility" means the southwest Idaho treatment center, a nursing facility, an intermediate care facility, an intermediate care facility for people with intellectual disabilities, a licensed residential or assisted living facility, a group foster home, other organizations licensed to provide twenty-four (24) hour care, treatment and training to the developmentally disabled, a mental health center, or an adult and child development center.

(9) "Lacks capacity to make informed decisions" means the inability, by reason of developmental disability, to achieve a rudimentary understanding of the purpose, nature, and possible risks and benefits of a decision, after conscientious efforts at explanation, but shall not be evidenced by improvident decisions within the discretion allowed nondevelopmentally disabled individuals.

(10) "Licensed independent practitioner" or "LIP" means:

(a) A licensed physician or physician assistant pursuant to section 54-1803, Idaho Code; or

(b) A licensed advanced practice registered nurse pursuant to section 54-1402, Idaho Code.

(11) "Likely to injure himself or others" means:

(a) A substantial risk that physical harm will be inflicted by the respondent upon his own person as evidenced by threats or attempts to commit suicide or inflict physical harm on himself; or

(b) A substantial risk that physical harm or a sexual offense will be inflicted by the respondent upon another as evidenced by behavior that has caused such harm or that places another person or persons in reasonable fear of sustaining such harm; or

(c) That the respondent is unable to meet essential requirements for physical health or safety.

(12) "Manage financial resources" means the actions necessary to obtain, administer and dispose of real, personal, intangible or business property, benefits and/or income.

1 (13) "Meet essential requirements for physical health or safety" means
2 the actions necessary to provide health care, food, clothing, shelter, per-
3 sonal hygiene and/or other care without which serious physical injury or
4 illness would occur.

5 (14) "Minor" means an individual under age eighteen (18) years.

6 (15) "Protection and advocacy system" means the agency designated by
7 the governor of the state of Idaho to provide advocacy services for people
8 with disabilities pursuant to 42 U.S.C. 6042.

9 (16) "Respondent" means the individual subject to judicial proceedings
10 authorized by the provisions of this chapter.

11 SECTION 4. That Section 66-406, Idaho Code, be, and the same is hereby
12 amended to read as follows:

13 66-406. JUDICIAL PROCEDURE FOR COMMITMENT TO DIRECTOR. (1) Proceed-
14 ings for the involuntary care and treatment of developmentally disabled per-
15 sons by the department may be commenced by the filing of a written applica-
16 tion with a court of competent jurisdiction by a friend, relative, spouse or
17 guardian of the respondent, or by a licensed physician, prosecuting attorney
18 or other public official, or the head of the facility in which the respondent
19 may be.

20 (2) The application shall state the name and last known address of
21 the respondent; the name and address of either the respondent's spouse,
22 guardian, next of kin or friend; whether the respondent can be cared for
23 privately in the event commitment is not ordered; and a simple and precise
24 statement of facts showing that the respondent is developmentally disabled
25 and likely to injure himself or others.

26 (3) Any application shall be accompanied by a report of an evaluation
27 committee stating that the committee has examined the respondent within the
28 last fourteen (14) days and is of the opinion that the respondent is develop-
29 mentally disabled and likely to injure himself or others; or a written state-
30 ment by the committee that the respondent has refused to submit to examina-
31 tion.

32 (4) Upon receipt of an application for commitment not accompanied by
33 an evaluation committee report, the court shall, within forty-eight (48)
34 hours, order the respondent to submit to an examination. The evaluation com-
35 mittee shall report to the court its findings within three (3) working days
36 of the order.

37 (5) If it is determined by the evaluation committee that the respondent
38 is developmentally disabled and likely to injure himself or others pending
39 the hearing, the court may issue an order authorizing a department employee,
40 peace officer, or head of a facility to take the respondent to a facility in
41 the community in which the respondent is residing or to the nearest facility
42 to await the hearing and for good cause may authorize treatment during such
43 period subject to the provisions of section 66-412(4), Idaho Code.

44 (6) Upon receipt of the application and evaluation committee report,
45 the court shall appoint a time and place for a hearing which shall be held not
46 more than seven (7) days from receipt of the report and give written notice
47 of the time and place of the hearing together with a copy of the application,
48 evaluation committee report, and notice of the respondent's right to be rep-
49 resented by an attorney, or if indigent, to be represented by a court-ap-

1 pointed attorney, to the applicant, to the respondent, and to either the re-
2 spondent's spouse, guardian, next of kin or friend, if other than the appli-
3 cant. With the consent of the respondent and his attorney, the hearing may be
4 held immediately. Upon motion for good cause shown and with the respondent's
5 consent, the court may continue the hearing up to an additional fourteen (14)
6 days.

7 (7) An opportunity to be represented by counsel shall be afforded to ev-
8 ery respondent, and if neither the respondent nor others provide counsel,
9 the court will appoint the counsel in accordance with chapter 8, title 19,
10 Idaho Code.

11 (8) The hearing shall be held at a facility, at the respondent's home,
12 or at any other suitable place not likely to have a harmful effect on the re-
13 spondent's physical or mental health.

14 (9) In all proceedings under the provisions of this section, any ex-
15 isting provision of law prohibiting the disclosure of confidential commu-
16 nications between any member of the evaluation committee and the respondent
17 shall not apply.

18 (10) The respondent, the applicant, and any other person to whom no-
19 tice is required to be given shall be afforded an opportunity to appear at
20 the hearing, to testify, and to present and cross-examine witnesses. The
21 respondent shall be required to be present at the hearing free from drugs
22 likely to impair the respondent's ability to communicate or understand the
23 proceedings, unless the court determines that the mental or physical state
24 of the respondent is such that his presence at the hearing free from drugs
25 would be detrimental to the respondent's health or would unduly disrupt the
26 proceedings. A record of the proceedings shall be made as for other civil
27 hearings. The hearing shall be conducted in an informal manner consistent
28 with orderly procedure and rules of evidence.

29 (11) If, upon completion of the hearing and consideration of the record,
30 the court finds by clear and convincing evidence that the respondent:

31 (a) Is developmentally disabled; and

32 (b) Because of such condition is likely to injure himself or others; and

33 (c) Lacks capacity to make informed decisions about treatment;

34 the court shall order the respondent committed to the custody of the direc-
35 tor for an indeterminate period of time not to exceed three (3) years. The
36 director or his designee shall determine within forty-eight (48) hours the
37 least restrictive available placement consistent with the needs of each re-
38 spondent committed under the provisions of this section and make arrangement
39 for placement in that setting.

40 (12) Nothing in the provisions of this chapter or in any rules or regu-
41 lations adopted pursuant hereto shall be construed to authorize the commit-
42 ment of an individual who can be properly cared for privately with the help of
43 willing and able family or friends.

44 (13) The order of commitment shall state the name and address of the re-
45 spondent's attorney, and either the respondent's spouse, guardian, adult
46 next of kin or friend, if any.

47 (14) A judicial finding in any currently pending criminal proceeding
48 that a defendant is unfit and there is not a substantial probability the
49 defendant will be fit to proceed within the foreseeable future or if the
50 defendant is not fit to proceed after the expiration of the additional one

1 hundred eighty (180) days, pursuant to section 18-212, Idaho Code, shall
2 create a rebuttable presumption that the respondent is unable to meet es-
3 sential requirements for physical health or safety for purposes of section
4 66-329(11), Idaho Code.

5 SECTION 5. An emergency existing therefor, which emergency is hereby
6 declared to exist, this act shall be in full force and effect on and after
7 July 1, 2026.